

to provide only for such children as should survive the surviving parent."

4. **Where vesting not provided for by the settlement.**—Where the settlement is silent as to the vesting of the portions, the Court has to fall back upon general principles, and *Remnant v. Hood* (c) is an important case upon this head. A testator devised *his estate to Samuel [*398] Thorold for life, with remainder to his first and other sons successively in tail, with remainder to his first and other daughters successively in tail, and enabled the tenant for life to charge 2,000*l.* for the portions of his younger children. S. Thorold accordingly upon his marriage charged 2,000*l.* to be raised within three months from his decease in favour of his younger children, but gave no directions as to the time of vesting. There was issue of the marriage a son and six daughters; the son died an infant in the father's lifetime, so that on the death of the father the eldest daughter became tenant in tail in possession. Two others of the daughters died infants in their father's lifetime, and the three remaining daughters married and attained twenty-one and two of them survived the father, but the other died in his lifetime. It was conceded by the counsel that the infants who died in the father's lifetime would take nothing, though L. J. Knight Bruce entertained a doubt (a). But as to the one who attained twenty-one and died in the father's lifetime, it was contended that the portion as a charge upon land had by the death of the portionist before the time for raising it sunk for the benefit of the estate. It was ruled, however, to the contrary, and the deceased child who had attained twenty-one and married was held entitled to participate. Lord Justice Turner, who applied himself to the points raised with his usual care, observed, "There are three periods at which the portions may have been intended to vest; the period of the birth of the children, the period at which they would require their portions (which, according to the ordinary habit in such cases as evidenced by the usual course of settlement, would be at twenty-one, or as to the daughters on marriage), and the period of the death of the

(c) 2 De G. F. & J. 396.

(a) See 2 De G. F. & J. 403.